

23STCV14354 23STCV14354

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Case Number: 23STCV14354 Hearing Date: August 13, 2026 Dept: 617

Dept.

617

Date:

8-13-26

Case

#: 23STCV14354

Trial

Date: 10-19-26

SUMMARY ADJUDICATION

MOVING

PARTY: Defendant, Los Angeles Unified School District

RESPONDING

PARTY: Plaintiff, D.M.

RELIEF

REQUESTED

Motion

for Summary Adjudication as to Second, Third, and Fifth Causes of Action

SUMMARY

OF ACTION

Plaintiff

D.M. alleges she was sexually assaulted in 1971 by a school janitor, "Jim" and/or "Jaimie," while she was a third-grade student at Huntington Drive Elementary School. Plaintiff alleges that following the second assault, she told Vice Principal Bob Jones that "Jim the janitor was bothering me in the bathroom." Plaintiff further claims that the janitor had a reputation around the school for giving girls in the school "the creeps." Plaintiff alleges that no corrective action was taken against the alleged perpetrator and the abuse continued.

On

August 24, 2023, Plaintiff filed a First Amended Complaint against Defendant Los Angeles Unified School District for: (1) Negligence; (2) Negligent Hiring, Retention, and Supervision; (3) Negligent Failure to Warn, Train, or Educate; (4) Negligent Supervision of a Minor; (5) Breach of Mandatory Duty; and (6) Negligence (against DOES 2 through 25).

RULING: Granted in part.

Evidentiary Objections: Overruled.

Defendant

moves for summary adjudication as to Plaintiff's second, third, and fifth causes of action for negligent hiring, negligent failure to warn, and breach of mandatory duty. Plaintiff represents that she does not intend to proceed with her breach of mandatory duty claim. [Opp. at p. 12] Thus, only the negligent hiring and failure to warn claims are at issue. Defendant argues that no triable issue exists as to these claims because Plaintiff cannot prove the alleged perpetrator was ever employed by Defendant. Plaintiff opposes the motion, contending that her and former school staff testimony raise a triable issue as to whether Defendant employed the person who allegedly assaulted her. Plaintiff alternatively requests a continuance to conduct further discovery to identify the alleged perpetrator. Defendant's motion is granted in part only as to the breach of mandatory duty claim. The motion is denied as to the other challenged claims because Plaintiff raises a triable issue as to the negligent hiring claim and Defendant fails to meet its burden as to the negligent failure to warn claim.

The pleadings frame the issues for motions, "since it is those allegations to which the motion must respond. (Citation.)" (*Scolinos v. Kolts* (1995) 37 Cal. App.

4th 635, 640-641; FPI Development, Inc.

v. Nakashima (1991) 231 Cal.App.3d 367, 382-83; Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp. (1994) 29 Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On

a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.)

“When

deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code Civ. Proc., § 437c, subd. (c).) “An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork.” (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1041 (citation omitted).)

Defendant

argues that no triable issue exists as to Plaintiff’s negligent hiring and

negligent failure to warn claims because Plaintiff cannot prove that the alleged perpetrator was employed by Defendant. A school district and its employees have a special relationship with the district's students. (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 869.) Because of this special relationship, "the duty of care owed by school personnel includes the duty to use reasonable measures to protect students from foreseeable injury at the hands of third parties acting negligently or intentionally." (Id. at p. 870.) A district can be held vicariously liable for an employee's breach of this duty. (Id. at pp. 875-77; Gov. Code, § 815.2.) As pled, Plaintiff seeks to hold Defendant vicariously liable for its employees' negligence in (1) hiring, supervising, and retaining the alleged perpetrator and (2) failing to warn Plaintiff of the dangers posed by him, inform and educate Plaintiff on the district's sexual harassment and reporting policies, and train faculty on the district's sexual harassment and abuse policies. [FAC ¶¶ 55-70.]

Defendant

satisfies its burden on the negligent hiring claim. Negligent hiring requires Plaintiff to prove that the alleged perpetrator was Defendant's employee and Defendant "knew or had reason to believe [he] was likely to engage in sexual abuse." (Lopez v. Watchtower Bible & Tract Society of N.Y., Inc. (2016) 246 Cal.App.4th 566, 591.) In her deposition, Plaintiff identified the alleged perpetrator as Jaimie or Jim, but Defendant's records do not reflect that anyone by that name was employed by Defendant. [Gebreestifanos Decl. ¶ 3, Ex. A: Plaintiff's Depo., p. 26:5-8.] Jaimie or Jim is not reflected in Defendant's physical or digital employee records or in yearbooks from the 1960s and 1970s. [Id. ¶¶ 4-5, Ex. B: Fuller Decl. ¶¶ 7-8, Ex. C: Velasco Decl. ¶¶ 4-7.][1] Defendant cannot be held liable for the negligent hiring or supervision of an employee if the alleged perpetrator was not an employee. The burden therefore shifts to Plaintiff to raise a triable issue of material fact.

Plaintiff

has met her burden. Plaintiff presents corroborating testimony from herself as well as teachers from the relevant time period identifying a potential perpetrator. Plaintiff understood the alleged perpetrator to be a janitor at the school because he cleaned and wore a uniform. [Karp Decl. ¶ 3, Ex. A: Plaintiff's Depo., p. 25:3-19.] She described him as a Mexican man with black hair, brown/olive skin, and a "medium" build. [Id. at pp. 28:22-23, 52:19-22.] Janet Lally and Mary Jane Garcia formerly taught at Huntington Drive Elementary School, Lally starting in 1972 and Garcia from 1970-1972, and they both

recalled a janitor identified as “Mr. Luna.” [Id. ¶¶ 8-9, Ex. E: Lally Depo., pp. 11:24-12:24, 13:23-14:10, Ex. F: Garcia Depo., pp. 13:5-22, 19:12-20:3.] Lally described him as “Middle age; Latino; a little heavyset” and Garcia described him as Hispanic and between 5'6-5'7. [Id. Ex. E, pp. 13:23-14:13, Ex. F, p. 20:14-21.] Garcia also explained that Mr. Luna cleaned the second, third, and fourth grade classrooms. [Id. Ex. F, pp. 19:12-20:3, 25:17-26:2.] The teachers’ testimony thus describes a janitor sharing roughly the same description as the one identified by Plaintiff and who cleaned third grade classrooms (i.e., the same grade during which Plaintiff alleges she was assaulted). This creates a triable issue that Plaintiff can identify the alleged perpetrator and that he was employed by Defendant. And Defendant’s argument that Plaintiff’s evidence does not show its awareness of the perpetrator’s propensities before the alleged assault is unavailing as Defendant presents no evidence to negate Plaintiff’s allegation that she put Vice Principal Jones on notice of the misconduct after the second assault. Defendant is therefore not entitled to summary adjudication as to the negligent hiring claim.

Defendant

fails to meet its burden as to the negligent failure to warn claim. Unlike Plaintiff’s negligent hiring claim, the failure to warn claim does not require a showing that the alleged perpetrator was Defendant’s employee and Defendant cites no authority to the contrary. As explained, Defendant’s employees owed Plaintiff a duty of care “to use reasonable measures to protect [Plaintiff] from foreseeable injury at the hands of third parties acting negligently or intentionally.” (C.A., supra, 53 Cal.4th at p. 870; see also *Juarez v. Boy Scouts of America, Inc.* (2000) 81 Cal.App.4th 377, 411-12 [discussing failure to warn claim].) To the extent Defendant relies on the lack of an identified perpetrator to argue that the alleged perpetrator did not exist, the testimony from Plaintiff and teachers sufficiently rebuts this. Defendant is therefore not entitled to summary adjudication on the negligent failure to warn claim.

Defendant’s

motion is therefore granted in part. It is entitled to summary adjudication on the breach of mandatory duty claim (based on Plaintiff’s concession). But it is not entitled to summary adjudication on the negligent hiring and failure to warn claims. Because summary adjudication is denied as to the latter claims, the Court does not address Plaintiff’s request for additional discovery.

Defendant to

[1] Luis

Velasco, current principal of Huntington Drive Elementary School, testified that he found yearbooks from 1966-1970 and 1972-1973, but was unable to find a yearbook for the year 1970/1971 and 1971/1972. [Velasco Decl. ¶ 5.]